

The court on its own motion continues the motion for preliminary approval to be heard on **June 30, 2026 at 8:30 a.m. in Department 42**. By June 9, 2026, plaintiff is directed to file and serve on all parties (1) notice of continued hearing and (2) a copy of the Section 3699.3 notice to the LWDA.

11. S-CV-0055273 Kapitrus Servicing v. Ultimate Low Voltage

Judgment creditor is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Assignment Order

Judgment creditor moves for a court order directing judgment debtors Ultimate Low Voltage, Inc. dba Ultimate Low Voltage and Jon Fenton to assign to the judgment creditor all or part of a right of payment due and an order restraining assignment of payments due within the meaning of Code of Civil Procedure sections 708.510 and 708.520. No opposition has been filed.

Judgment creditor filed an application for entry of judgment on a September 13, 2023 Virginia judgment in the current amount of \$80,720.42. The Placer County Clerk entered the sister-state judgment on May 21, 2025. Judgment creditor filed proofs of service on June 9, 2025 purporting to show service of the sister-state judgment. However, there is insufficient evidence of proper service of the sister-state judgment as to judgment debtor Ultimate Low Voltage as no agent for service of process or designated officer of the corporation is listed on the proof of service. Notice of entry of judgment shall be promptly served on judgment debtor in the same manner as provided for service of summons. (Code Civ. Proc., § 1710.30, subd. (a).) "A summons may be served on a corporation by delivering a copy of the summons and the complaint by any of the following methods: (a) To the person designated as agent for service of process" or to a designated officer of the corporation. (Code Civ. Proc., § 416.10, subds. (a), (b).) The proof of service provides insufficient evidence of effective service of the sister-state judgment.

As to judgment debtor Jon Fenton, the proof of service filed June 9, 2025 shows service by substitution pursuant to Code of Civil Procedure section 415.20(b). However, no declaration of diligence is provided in support of substitute service, as required by Section 415.20(b). It appears this judgment debtor may have been served pursuant to Code of Civil Procedure section 415.20(c), but this subdivision is not included on the June 9, 2025 proof of service.

Moreover, in addition to service of the judgment, the judgment creditor is required to provide notice "in a form prescribed by the Judicial Council and shall inform the judgment debtor that the judgment debtor has 30 days within which to make a motion to vacate the judgment." (Code Civ. Proc., § 1710.30, subd. (a).) There is no evidence in the court's file showing judgment debtors were served with this language. There is no form

EJ-110 in the court's file. Without service of this language, the 30-day period during which a judgment debtor may move to set aside the judgment has not yet been triggered.

Due to these procedural deficiencies, the motion is denied without prejudice.

Also, even if the court could reach the merits, which it cannot, the court observes the declaration of counsel Fisher submitted in support of this motion is signed and dated December 12, 2026, a date approximately six months into the future.

12. S-CV-0055751 Hebert, Rebecca M. v. Jessup, Luke Christopher

If oral argument is requested, it will be heard in Department 42 by the Honorable Trisha J. Hirashima. Department 42 is located at **10820 Justice Center Drive, Roseville, California 95678.**

Motion for Leave to File a First Amended Answer

Defendant's unopposed motion for leave to file a first amended answer is granted. (Code Civ. Proc., § 473, subd. (a).) Defendant shall file and serve his first amended answer by June 12, 2026.

13. S-CV-0055953 Safe Nation Found. v. Wildlife Heritage Found.

Defendant is advised that the notice of demurrer and motion to strike must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to the Complaint

Plaintiff Safe National Foundation, a California Benefit Corporation (formerly Steelheart International Foundation) ("Plaintiff") alleges that Defendant Wildlife Heritage Foundation, a California Public Benefit Corporation ("Defendant") improperly interfered with Plaintiff's efforts to transfer or sell Sustainable Groundwater Management Act ("SGMA") allocations associated with property subject to a conservation easement ("Conservation Easement") by delaying approval and imposing conditions allegedly unrelated to conservation purposes. Plaintiff further alleges the allocations are regulatory extraction allowances, different from traditional groundwater rights and, therefore, either fall outside the Conservation Easement or are subject to approval authority that must be exercised reasonably and in furtherance of the Easement's conservation objectives. Defendant contends the Conservation Easement unambiguously grants it broad discretionary authority over transfers affecting groundwater-related interests, including SGMA groundwater allocations and that Plaintiff's claims fail because Defendant merely exercised its expressed rights granted under the Conservation Easement.

On or about January 20, 2026, Defendant demurred as to the **First** (Breach of Contract), **Second** (Breach of Implied Covenant of Good Faith and Fair Dealing), **Third** (Intentional Interference with a Prospective Economic Advantage), **Fourth** (Unfair